



DECISION

Complaint No. : POS/414/2025/R.Thar

Name and address of the complainant : Mr. Anwar R/o Village Nanisar, Taluka Mithi, District Tharparkar

Name of the Agency Complained against : Social Welfare Department

Name & Designation of Investigating Officer : Mr. Amjad Ali Laghari, Regional Director, Tharparkar @ Mithi

Vetted by : Mr. Masood Ishrat, Registrar

Subject : DELAY IN APPOINTMENT AGAINST DISABLED QUOTA

THE COMPLAINT

Mr. Anwar S/o Muhammad Hajam filed a complaint in this office on 02.09.2025 alleging non-issuance of his appointment order against the Disabled Quota, though his candidature had been duly finalized by the competent District Selection Committee (DSC) strictly on merit and in accordance with the prescribed rules. He, therefore, solicited intervention of this office.

PROCEEDINGS

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date), by condoning delay and after receipt of the mandatory affidavit (Form-A) along with supporting documents, the matter was referred to the Agency for comments/report.

3. In response, the Deputy Director (HQ), Social Welfare Department, Tharparkar, submitted report dated 13.10.2025 stating that name of the complainant was duly recommended for appointment against the Disabled Quota by the District Selection Committee in its meeting held on 11.05.2023 under the chairmanship of the Deputy Commissioner, Tharparkar. The minutes of the DSC were issued on 26.05.2023 and forwarded to the Director General (Admin), Social Welfare Department, Karachi vide letters dated 30.05.2023 and 07.06.2023 for necessary action and issuance of appointment order.

4. Ms. Farhana Naheed, Director General, Social Welfare Department, appeared before me on 01.04.2026 and submitted report of even date along with a written statement. It was stated that although the complainant's case had been processed and recommended by the District Selection Committee but issuance of appointment order could not be finalized, due to restraining orders dated 09.08.2023 passed by the Hon'ble High Court of Sindh regarding appointments in BPS-01 to BPS-15. It was further stated that the department adhered to the directions of the Hon'ble High Court and ensured that no appointments were made during the subsistence of the restraining orders. It was also submitted that recruitment for posts in BPS-01 to BPS-04 was advertised in December 2025 however, the same could not be finalized due to subsequent imposition of ban by the Government of Sindh. It was further contended that the complainant did not apply afresh in response to the said advertisement.

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5. In her written statement, it was further submitted that the matter has been re-examined and the relevant posts shall be re-advertised in due course ensuring inclusion of the prescribed Disabled Quota. It was stated that candidates earlier considered through the Departmental Selection Committee in 2023, including the complainant, shall be intimated and would be at liberty to apply afresh, and their candidature would be considered along with other eligible candidates strictly on merit in accordance with the prescribed procedure.

FINDINGS

6. Perusal of the record reveals that name of the complainant was duly recommended for appointment against the Differently-abled Persons' Quota by the competent District Selection Committee in its meeting held on 11.05.2023 under the chairmanship of the Deputy Commissioner, Tharparkar. The recommendation was forwarded to the competent authority for issuance of appointment order; however, the same could not materialize due to restraining orders dated 09.08.2023 passed by the Hon'ble High Court of Sindh in respect of appointments in BPS-01 to BPS-15.

7. It is an admitted position that the complainant had successfully qualified the prescribed selection process and his candidature had attained finality at the level of the District Selection Committee. However, due to legal impediments arising from the restraining orders of the Hon'ble High Court as well as subsequent administrative decisions of the Government regarding recruitment, the appointment order could not be issued and the posts would now be re-advertised.

DECISION

8. In view of the above and in exercise of powers vested under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended), I hereby direct the Secretary, Social Welfare Department, Government of Sindh, to ensure that the complainant and other candidates, who were earlier recommended by the District Selection Committee, are duly informed at the time of fresh advertisement and provided an opportunity to apply in the ensuing recruitment process in accordance with law and rules.

Given under my hand and seal of the office



Sd /-

(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz, PAS
Ombudsman, Sindh
Karachi, the 30th April, 2026